ECCHR and Palestinian human rights organizations Sue to Stop German Weapons Exports to Israel

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Today, the European Center for Constitutional and Human Rights (ECCHR), supported by the Palestinian Center for Human Rights (PCHR) in Gaza, the Al Mezan Center for Human Rights in Gaza and the human rights organization Al Haq in Ramallah, filed a lawsuit seeking to suspend export licenses issued by the German government for arms shipments to Israel.

The suit is on behalf of five Palestinians living in the Gaza Strip whose family members have been killed during Israeli rocket attacks.

"I have lost most of my relatives. I have also lost my home, and I am without shelter. Inhabited areas and public facilities are being bombed indiscriminately and intensively everywhere. There is no safe place in Gaza, and I feel that my life is in constant danger because of the Israeli military operations", declared one of our claimants in an affidavit.

"International law and human rights are fundamental," says ECCHR General Secretary Wolfgang Kaleck. "A basic prerequisite for a rules-based and human rights-oriented German foreign policy is respect for the law in its own decision-making. Germany cannot remain true to its values if it exports weapons to a war where serious violations of international humanitarian law are apparent."

In our lawsuit, we call on the court, as part of provisional measures, to suspend export licenses issued by the German government for arms shipments to Israel. The lawsuit alleges that there are grounds to believe that Germany is not fulfilling and is violating its obligations under international law in accordance with the German Weapons of War Control Law (Kriegswaffenkontrollgesetz). In particular, the claimants allege violations under the EU Common Position on Arms Exports Control, the Arms Trade Treaty, the Genocide Convention, the Geneva Conventions and human rights law by issuing export licenses for weapons of war requested by Israel. In these rights violations, weapons of war, in the same category for which Germany is granting licenses, are being used to kill and displace civilians, destroy civilian infrastructure in Gaza, as well as control and limit the transfer and distribution of humanitarian aid.

In 2023, Germany issued a license for the export to Israel of 3,000 anti-tank weapons; a request regarding 10,000 rounds of 120mm precision ammunition for Israeli tanks is still pending. A large number of other components, such as engines for tanks, have been licensed and exported as well, making Germany the second biggest arms provider to Israel after the U.S.

Raji Sourani, Director of the Palestinian Center for Human Rights (PCHR) in Gaza:

"Germany must finally call on Israel to end the aggression in Gaza. Israel must stop attacking civilians. Stopping the arms shipments would send an important political signal to help make this happen. International law, international humanitarian law and human rights law are there to protect civilian populations in times of war. Instead, we are witnessing dogs eating the bodies of our children in the ruins of Gaza. No one living in Gaza knows whether they will still be alive in an hour’s time. Germany should stop the shipment of every last ammunition cartridge that is used to kill us in Gaza and demand an immediate ceasefire."

Issam Younis, Director of Al Mezan Center for Human Rights in Gaza:
"In the wake of Israel's genocidal military campaign against Gaza, continuing arms trade with Israel not only stands as a moral affront to, but also a flagrant violation of, international law. The recent UN Human Rights Council resolution, urging all states to cease the sale, transfer and diversion of arms, munitions and other military equipment to Israel, underscores the urgency of this matter. Germany’s dissenting vote against the resolution highlights a concerning disregard for its international obligations. In pursuing this case, we call upon Germany to uphold its legal responsibilities or face the specter of complicity in the grave violations unfolding in Gaza."

Shawan Jabarin, Director of Al Haq in Ramallah:
“We remind Germany of its erga omnes obligations to protect the Palestinian people. Germany’s arming of Israel, stands in flagrant disregard of the International Court of Justice’s finding of a plausible case of genocide. Acting with knowledge of Israel’s acts, Germany has continued to arm Israel with weapons to destroy the Palestinian people - killing innocent newborn babies, children, women, men, the elderly, journalists, medical doctors and more, – in the commission of the most heinous international crimes witnessed this 21st century. Germany's acts are not only destroying the Palestinian people, they are destroying the rules based international order wherein the most basic precepts of humanity are enshrined.”

No German weapons to Israel
Multiple requests for provisional measures against Germany’s ongoing arms exports to Israel highlights the lack of transparency and legal oversight in the country’s export control system
Despite well-documented violations of international law violations in Gaza, Germany continues to authorize arms exports to Israel. ECCHR supports legal efforts to challenge these decisions—efforts that expose critical gaps in transparency, accountability, and access to justice in Germany’s arms export system. The cases are brought by five Gaza-based plaintiffs and supported by ECCHR in cooperation with the Palestinian human rights organizations Al Mezan, Al-Haq and the Palestinian Centre for Human Rights (PCHR).
Case

Our position remains that the German government, under international law, is not permitted to issue licenses for weapons of war or other military equipment to Israel for use in Gaza.

Despite overwhelming evidence of international law violations in Gaza, the German government continues to approve arms exports to Israel. United Nations experts, international human rights organizations and various international law experts have come to the conclusion that Israel’s actions in Gaza satisfy the legal criteria for genocide. In November 2024, the International Criminal Court issued arrest warrants for Israeli Prime Minister Netanyahu and former Defense Minister Gallant, among others, citing war crimes and crimes against humanity. Yet, legal efforts to challenge German arms export licenses – led by five Gaza-based plaintiff and supported by ECCHR and its partners – have so far been rejected by the courts.

In early 2024, the plaintiffs filed an urgent request to stop the export of anti-tank weapons reportedly used in Gaza. But the licenses had already been granted months earlier, rendering the urgent application obsolete. In November 2025, the Berlin Administrative Court also dismissed the continuation of declaratory judgment action (Fortsetzungsfeststellungsklage), through which we sought to establish whether the weapons of war shipments that took place between October 2023 and February 2024 were lawful. The court held that there was no risk of repetition. A second application from May 2024, aimed at preventing future war weapons exports, was dismissed on the grounds that there was no such pending license procedure."

This is where the systematic lack of transparency proves to be a fundamental problem in legal protection against arms export licenses: Without access to information about export decisions, those affected cannot seek timely legal remedies. A third application demanded that the government disclose license approvals for war weapons once granted. Again, both the Berlin Administrative Court and the Higher Administrative Court in Berlin-Brandenburg denied the claim, citing confidentiality and the absence of a legal right to such information.

In July 2024, the plaintiffs filed an urgent application with the Frankfurt Administrative Court regarding exports of military equipment not covered by the weapons of war regulation, such as tank engines, transmissions, weapons system components, and technology transfer licenses. The court rejected the request, deeming it inadmissible and unjustified. It argued that granting licenses for military equipment did not violate the plaintiffs' rights and that UN statements on Israel were insufficient to support claims of international law violations in expedited proceedings, citing the UN’s controversial stance on the Middle East conflict.

When media outlets revealed in October 2024 that tank components had been licensed for export, a new filing followed. For once, specific details about the weapons, manufacturer and timing were public. But even then, the court in Frankfurt dismissed

the case, acknowledging the catastrophic scale of the war but ruling that the plaintiff from Gaza lacked the legal standing to challenge the exports. The court also referenced the controversial Bundestag resolution on antisemitism, interpreting it as a political mandate for the German government to continue supporting Israel – including through arms exports deemed "compatible" with human rights and international law. The Higher Administrative Court in Kassel also refused to grant legal protection.

The plaintiff now lives with his family in a tent in the south of the Gaza Strip—under extremely precarious conditions and in constant danger to their lives. The so-called "ceasefire" offers no protection, as Israeli armed forces repeatedly violate it through shelling, including with tanks. "We do not feel safe at all. We expect at any moment that an Israeli airstrike could hit us," he explains in a recent affidavit. Despite the repeated attacks, the German government has since lifted the export approval freeze it imposed in August 2025.

In October 2025, with our support, one of the plaintiffs filed a constitutional complaint with the German Federal Constitutional Court in Karlsruhe. He invoked his fundamental right to life and physical integrity, as well as his right to effective legal protection. On 18 December, he also submitted an urgent application seeking to ensure that no further tank transmissions would be delivered until the Court had ruled on the constitutional complaint. In February 2026, the Court dismissed the complaint, leaving those whose lives may be endangered by German arms exports without effective legal protection.

These proceedings reveal a fundamental flaw in Germany's arms export system: decisions are shielded from public scrutiny and judicial oversight. Without transparency, courts cannot assess the legality of exports, and those directly affected cannot defend their rights – despite the catastrophic consequences on the ground. While several legal actions have been dismissed on procedural grounds, the plaintiff from Gaza has appealed one of the most recent decisions.